

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
Roy Anthony Beckford,

Plaintiff,

Index No.

-v-

SUMMONS

The City of New York, New York City Police
Department ("NYPD") Officer ("P.O.") Kyle Slater,
Shield No. 9805, and P.O. John Doe, in their individual
capacities,Plaintiff designates
New York County
as the County of VenueVenue is based upon location
where claim arose.Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney, at his address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer must be served within 20 days after such service of the summons, excluding the date of service.

If the summons was not personally delivered to you within the State of New York, the answer must be served within 30 days after service of the summons is complete as provided by law.

If you do not serve an answer to the attached complaint within the applicable time limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of New York. This action is brought in the County of New York because it is the place in which the claim arose.

Dated: July 14, 2017
New York, New YorkBy: David B. Rankin
BELDOCK LEVINE & HOFFMAN LLP
Attorneys for the Plaintiff
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
Roy Anthony Beckford,

Plaintiff,

**VERIFIED COMPLAINT AND
DEMAND FOR A JURY TRIAL****Index No.**

-v-

The City of New York, New York City Police
Department ("NYPD") Officer ("P.O.") Kyle Slater,
Shield No. 9805, and P.O. John Doe, in their individual
capacities,Defendants.
-----X

Plaintiff Roy Anthony Beckford, through his attorneys David B. Rankin of Beldock
Levine & Hoffman LLP, as and for his complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under Article 1, Section 6 of the Constitution of the State of New York, the laws of the State of New York, and the First, Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983.
2. Plaintiff Roy Anthony Beckford's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis used gratuitous, unlawful force against the plaintiff, despite knowing there was no justification for an arrest, use of force or prosecution. By reason of defendants' actions, particularly their unreasonable use of force and unlawful arrest, plaintiff was deprived of his constitutional, statutory and common law rights.
3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

JURISDICTION AND VENUE

4. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of plaintiff's rights under the First, Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and for violations of plaintiff's rights under Article 1, Section 12 of the Constitution of the State of New York, and the laws of the State of New York.
5. Pursuant to New York State General Municipal Law § 50-e, plaintiff Beckford filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2016PI021975.
6. A ruling stating the above was rendered in *Beckford v. The City of N.Y.*, N.Y. Co. Index No. 155940/2017.
7. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.
8. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because the plaintiff Beckford's claims arose in the County of New York.
9. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

10. Plaintiff, Roy Anthony Beckford, is and was at all times relevant to this action a resident of Kings County in the State of New York.
11. Defendant the City of New York ("City"), is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

12. New York City Police Department ("NYPD") Officer ("P.O.") Kyle Slater ("Slater"), Badge No. 9805, and P.O. John Doe (referred to collectively as the "individual defendants") are and were at all times relevant herein, officers, employees and agents of the NYPD.

13. The individual defendants are being sued herein in their individual and official capacities under federal law.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

15. The true names and shield numbers of defendants P.O. John Doe is not currently known to the plaintiff.¹ However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants

¹ By identifying said defendants as "John Doe" or "Richard Roe," plaintiff is making no representations as to the gender of said defendants.

become known to plaintiff and (b) that the Law Department should immediately begin preparing their defense in this action.

16. The individual defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.

17. At all relevant times, the individual defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

18. Plaintiff Beckford was injured by P.O. Slater and P.O. Doe on April 18, 2016, in the vicinity of 25 West 40th Street in the County and State of New York.

19. At approximately 8:15 p.m., plaintiff Beckford participated in a demonstration in and around the Bryant Park Grill.

20. At approximately that time date and location, demonstrators were asked to leave the restaurant.

21. On information and belief, Mr. Beckford was not leaving with the speed an unnamed lieutenant would have liked, so the lieutenant directed P.O. Slater and P.O. Doe to arrest Mr. Beckford.

22. P.O. Slater and P.O. Doe placed handcuffs on Mr. Beckford.

23. P.O. Slater and P.O. Doe used unnecessary force by twisting Mr. Beckford's arm causing injury to his shoulder.

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**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983**

24. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

25. Defendants, under color of state law, subjected the plaintiff to the foregoing acts and omissions, thereby depriving plaintiff of his rights, privileges and immunities secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights:

a. freedom from unreasonable seizure of his person, including the excessive use of force;

26. Defendants' deprivation of plaintiff's constitutional rights resulted in the injuries and damages set forth above.

**SECOND CLAIM
MONELL CLAIM AGAINST DEFENDANT CITY**

27. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

28. All of the acts and omissions by the individual defendants described above were carried out pursuant to overlapping policies and practices of the City which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant City and its agency, the NYPD.

29. Defendant City and the NYPD, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual defendants' wrongful acts; and/or failed to prevent or stop those acts; and/or allowed or encouraged those acts to continue.

30. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.

31. Defendant City knew or should have known that the acts alleged herein would deprive the plaintiff of his rights.

32. The aforementioned City policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned City policies, practices and/or customs, the individual defendants felt empowered to arrest plaintiff for violating Penal Law § 240.20(5) even where it was obvious she was doing nothing that would constitute the blocking of pedestrian traffic and where it was also obvious she was engaged in activity protected by the First Amendment. Pursuant to the aforementioned City policies, practices and/or customs, defendants failed to intervene in or report other defendants' violation of plaintiff's rights.

33. As such, the City's policies, practices, omissions and failures described above were the moving forces behind the violations of plaintiff's constitutional rights.

THIRD CLAIM
RESPONDEAT SUPERIOR LIABILITY OF THE City OF NEW YORK
FOR VIOLATIONS OF THE LAWS OF THE STATE OF NEW YORK

34. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

35. The conduct of the individual defendants alleged herein, occurred while he or she was on duty and in uniform, and/or in and during the course and scope of his or his duties and functions

as NYPD officers, and/or while he or she was acting as an agent and employee of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to plaintiff pursuant to the state common law doctrine of respondeat superior.

36. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FOURTH CLAIM
ASSAULT AND BATTERY
UNDER THE LAWS OF THE STATE OF NEW YORK**

37. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

38. By the actions described above, defendants did inflict assault and battery upon plaintiff. The acts and conduct of defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

39. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FIFTH CLAIM
INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS
UNDER THE LAWS OF THE STATE OF NEW YORK**

40. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

41. By the actions described above, defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and

conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

42. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

**SIXTH CLAIM
NEGLIGENCE
UNDER THE LAWS OF THE STATE OF NEW YORK**

43. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

44. The defendants, jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

45. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**SEVENTH CLAIM
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION, AND TRAINING
UNDER THE LAWS OF THE STATE OF NEW YORK**

46. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

47. Defendant City negligently hired, screened, retained, supervised, and trained defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and

damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

48. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

JURY DEMAND

49. Plaintiff demands a trial by jury in this action on each and every one of his damage claims.

WHEREFORE, plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That he be compensated for violation of his constitutional rights, pain, suffering, mental anguish and humiliation; and
- b. That he be awarded punitive damages against the individual defendants; and
- c. That he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: July 14, 2017
New York, New York

Respectfully submitted,

By: 

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ATTORNEY'S VERIFICATION

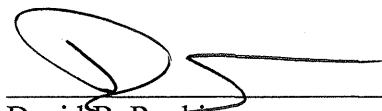
I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff, Mr. Beckford.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: July 14, 2017
New York, New York

Respectfully submitted,

By:


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